CONSULTATION RESPONSE · DEPARTMENT FOR INFRASTRUCTURE

Response to the Department for Infrastructure: Review of the Classes and Thresholds in the Schedule to the Planning (Development Management) Regulations (NI) 2015

224, 100, 59, 67: the number of responses to Northern Ireland's last four climate and environment consultations. This response answers the Department's seven questions and, at Annex A, asks why returns like these are tolerated. Submitted by Robert J. Park, Larne, Co. Antrim, by email to Legislation.Planning@infrastructure-ni.gov.uk on 6 November 2026, before the 5.00 pm deadline.

Who is responding (Q.1)

I am responding as an individual. I am an independent environment, carbon and public-affairs consultant based in Larne, working mainly with small and mid-sized Northern Ireland manufacturers on carbon reporting (UK and EU CBAM, CSRD, carbon inventories, ESOS), on land contamination and remediation, and on consultation and policy work. I am a member of the Chartered Institute of Public Relations. This response is my own view and does not represent any client. I am content for it to be published in full.

Much of my work sits where these proposals bite: energy storage and heat on industrial sites, carbon capture driven by the UK CBAM from 1 January 2027, waste and anaerobic digestion in the agri-food sector, and the legacy of contaminated land on the industrial sites where this development will be built. I have read the consultation document, the draft amending Statutory Rule, the Regulatory Impact Assessment and the Section 75 screening form, and I have compared the proposals with the equivalent hierarchies in Scotland and England.

The test I have applied

Classification is not a neutral label. In Northern Ireland a major application carries a statutory 12-week pre-application community consultation before it can be lodged, and the Department's own statistics for 2025/26 show major applications then taking an average of 41.4 weeks to decide, against a 30-week target met by two councils out of eleven. Regionally significant applications take longer still. Every threshold the Department lowers adds a year or more to a project; every threshold it raises removes scrutiny from something that may need it. So for each proposal I have asked one question: does the extra process change the decision, or does it only delay it? Where the answer is "only delay", I have suggested the threshold go up or the category go. Where the process would catch a real hazard that nothing else in Northern Ireland catches, I have supported it or asked for it. I have tried to make the Schedule simpler to apply, not longer.

Northern Ireland received 9,642 planning applications in 2025/26: 9,473 local, 165 major and four regionally significant. The whole of this consultation is about the boundary around those 169. It is worth getting right, and it is worth measuring.

Summary

The context for this response, including the question I put to the Department about who answers its consultations, the EU and Great Britain rules Northern Ireland carries without prior scrutiny, and the five positions from which I have judged each threshold, is at Annex A. I support the review and most of the proposals. The restructuring of Class 2 around

generation, storage, and transmission and distribution is sound, the move of hydrocarbons to Class 5 is right, and the switch to annual tonnage for waste matches Scotland. My concerns are about gaps, metrics and proportion:

1. **Go to 20 MW for generation, as Scotland did in 2009,** with a 10 hectare site-area criterion to catch ground-mounted solar. At 10 MW Northern Ireland would still have the lowest major threshold in these islands.
2. **Say how repowering and co-located storage are classified.** Regulation 2(1)(b) already judges an extension by the addition alone; the Schedule should say that repowering within a permitted boundary is classified by net added capacity and co-located storage on its own capacity.
3. *(DfI)* **Add a "fuel production" description to Class 2.** Electrolysers and biomethane upgrading plants generate neither electricity nor heat and store nothing; by default they fall to floorspace classes that bear no relation to their impact.
4. **Use the COMAH Regulations, not an energy figure, to classify chemical energy storage.** A 1 GWh hydrogen store holds about 30 tonnes, six times the lower-tier quantity; a 5-tonne store would be local development. One existing calculation can replace two new ones.
5. **Do not make battery storage major on safety grounds; make the fire service a statutory consultee instead.** England removed batteries from its national regime in 2020 because their planning impacts are low. Finish the definition of "electricity storage" before the Rule is laid.
6. **Keep the hazardous waste change, but add a de minimis** so that small transfer and collection facilities on existing licensed sites are not pushed into a 12-month process.
7. **Say where anaerobic digestion sits** (waste feedstock: Class 4 by tonnage; crop and manure feedstock: Class 2).
8. **Widen the carbon capture subclass** to capture installations at process sites above 100,000 tonnes a year, and drop the floorspace route for them. Northern Ireland has no underground storage; it will have capture plant.
9. **Keep closed-loop ground-source arrays out of the 200 m geothermal threshold.**
10. **Peat is the one place I ask for more scrutiny:** consult the Department on any new commercial extraction, or cut the 150 hectare figure to 25.
11. **Put a time limit on Department consultation.** New "all proposals" categories will send more cases to the Department; the Regulations should prescribe 28 days for its section 26 notice, with performance published, and the Act should be amended to make silence a notice.
12. **Publish the numbers.** The RIA has none. Before the Rule is made, publish applications by class and sub-class since 2015 and how many would move. Review in 2028, not 2030.
13. *(DfI, with DfE)* **Say in Class 2 that nuclear generating stations, including small modular reactors, are electricity generating stations and regionally significant,** and prepare a Northern Ireland siting position alongside EN-7.
14. *(DfI)* **Classify energy infrastructure inside an existing industrial site by the addition, with the same thresholds as stand-alone schemes,** so that on-site generation, storage, heat recovery and capture are not slower to consent than imports are to buy.
15. *(DfI for the statement; Executive and HM Treasury for CBAM and support schemes)* **Require an embodied-carbon and supply-chain statement for major energy development, covering carbon, forced and child labour and local pollution; treat embodied carbon as a consideration where it bears on a scheme's claimed climate benefit; and press for the UK CBAM to cover finished energy equipment on the EU's 2028 timetable,** with origin-neutral disclosure and due-diligence conditions on Northern Ireland support schemes.
16. *(DfI)* **Set each threshold against the EU and GB rules Northern Ireland already carries and cannot shape,** say so in the response report, and use EU-derived definitions where Northern Ireland must apply them anyway, so that it does not end up with the strictest classification and the least say.
17. *(DfI)* **Name interconnectors in Class 2 and east–west connectivity in Class 3** (converter stations, landfalls and onshore cable routes; port, port-access and airport capacity; subsea cable landings), as major development with the Department consulted, so that the links to Great Britain and to France on which Northern Ireland's security and trade depend have a clear, fast route to consent.
18. *(DfI)* **Publish who responded and how responses were weighed.** Northern Ireland consultations draw responses in the tens to low hundreds; a cohort that small is not directional and is open to being skewed by campaign or abusive submissions. Weigh evidence, not volume, and publish the rules in advance.

Each question is answered below. Where I say "Yes", I mean yes subject to the changes I set out. Asks are tagged with the body that can act on them; untagged asks are for the Department.

Q.2 Class 2: Energy Infrastructure

Yes, subject to the changes below.

What I support. Organising the class by purpose (generation, storage, transmission and distribution) with one capacity metric for each is the right design. It is technology-neutral and will age better than a list of named technologies. The new description for onshore heat generating stations (major from 10 MW, regional from 30 MW) fills a real gap for district heat and industrial heat. Treating all onshore works associated with an offshore generating station as major development is right: the landfall, cable route and substation are where the local impact sits. Raising the generating-station threshold from 5 MW to 10 MW, and the section 26(1) figure from 30 MW to 75 MW, is a step in the right direction.

Change 1: 20 MW, with a site-area criterion. Scotland has classified electricity generation as major from 20 MW since 2009, and its hierarchy has worked for sixteen years. England raised its national-regime threshold for solar from 50 MW to 100 MW on 31 December 2025, on the stated ground that mid-sized projects needed a more proportionate route. Northern Ireland at 10 MW would still have the lowest threshold in these islands, for a grid that needs 80% renewable electricity by 2030 and is not on course. A 10 MW wind farm is two or three turbines; a 10 MW solar farm is about 20 hectares. The first is a landscape question that councils handle every month; the second is a land question. I suggest major development from 20 MW, or a site area of 10 hectares or more, whichever comes first. That matches Scotland on capacity and catches the land take that an MW figure misses. The section 26(1) figure of 75 MW can stay.

Change 2: repowering and co-location. Regulation 2(1)(b) already classifies a change to or extension of existing development by whether the addition itself meets the threshold, as Scotland's Circular 5/2009 does. What the draft does not say is whether a repowering, with fewer and larger turbines replacing old ones within a permitted boundary, is a "change or extension" at all, or whether a battery added to a consented wind or solar site is judged on its own capacity or the site's. The Schedule, or the Department's guidance, should say that repowering within an existing permitted boundary is classified by the net change in capacity, and that co-located storage is classified on its own capacity. Most of the next decade's renewable capacity in Northern Ireland will come from repowering and co-location on consented sites, not greenfield. A rule that sends every such scheme through a second 12-week consultation and a 41-week determination is a tax on the cheapest capacity available.

Change 3: add a "fuel production" description. The class covers things that make electricity, things that make heat, things that store energy and things that move it. It does not cover things that make fuel. An electrolyser producing hydrogen, a biomethane upgrading plant taking biogas to grid specification, a plant making ammonia or synthetic fuels from renewable electricity: none generates electricity or heat for supply and none is storage. Under the draft Schedule they would be classified by floorspace under Class 8 or Class 9, which bears no relation to their impact. The Department for the Economy and DAERA are consulting on a Biomethane Strategy and Policy Framework until 15 December 2026, and DfE's hydrogen policy expects production here. The hierarchy should be ready for both. I suggest "installations for the production of fuel from electricity, biomass, biogas or waste," major from 10 MW of input or product capacity, section 26(1) from 30 MW, matching the heat description. This is not a new burden: it moves developments from a wrong metric to a right one.

Change 4: classify chemical energy storage by COMAH, not by gigawatt-hours. The proposed thresholds for chemical storage are 1 GWh (major) and 5 GWh (regional) above ground, and 500 MWh and 2 GWh below ground. Converted to mass, 1 GWh of hydrogen is roughly 30 tonnes (at 33.3 kWh per kilogram, lower heating value); 5 GWh is roughly 150 tonnes. The Control of Major Accident Hazards Regulations (Northern Ireland) 2015 make a site holding 5 tonnes of hydrogen a lower-tier establishment and 50 tonnes an upper-tier one. So a 5-tonne hydrogen store, about 167 MWh, would be a COMAH establishment with a major accident prevention policy, yet local development with no community consultation. It runs the other way for ammonia, where the lower-tier quantity of 50 tonnes is about 260 MWh. An energy figure cannot track hazard, because hazard depends on the substance. The simpler rule is one the operator must already

apply: any proposal for chemical energy storage holding a dangerous substance in a quantity at or above the lower-tier figure in Schedule 1 to the COMAH Regulations (Northern Ireland) 2015 is major development; any at or above the upper-tier figure is prescribed for section 26(1). Framing it by the quantity in the proposed store, rather than by the site's COMAH status, keeps it workable on a shared site. Two new numbers become none.

Change 5: battery storage. Northern Ireland dispatched down nearly 30% of its available wind in 2024 and 22% in 2025. Storage next to that wind is the quickest cure, and the Schedule should treat it as such. 200 MWh is a reasonable major threshold and I would not lower it. The draft says the definition of "electricity storage" is "to be finalised"; that should happen before the Rule is laid, and the definition should refer to the rated usable energy capacity of all units on the site, aggregated, with extensions counted cumulatively, so that a 300 MWh scheme cannot arrive as two 150 MWh applications. The real public concern about batteries is fire, and the fire-water run-off that follows it, which on a former industrial site can mobilise what is already in the ground. Major status does not manage that risk; it adds twelve weeks of consultation. England removed electricity storage, other than pumped hydro, from its Nationally Significant Infrastructure Project regime in 2020 on exactly that reasoning. The proportionate fix is to make the Northern Ireland Fire and Rescue Service a statutory consultee for battery storage proposals of any size under the Planning (General Development Procedure) Order (Northern Ireland) 2015, and to ask NIEA to look at drainage and ground condition. That costs an application a consultation response, not a year.

Change 6: say how co-location is counted. Solar with batteries, wind with hydrogen, heat with thermal stores: the schemes now coming forward combine descriptions. The Schedule should say that a proposal including development in more than one description is major if it meets the threshold for any one of them, and that the Department is consulted if it meets any section 26(1) figure. That is probably the intent; it should be written down.

Change 7: name nuclear generation. Paragraph 2 of Schedule 1 to the EIA Regulations (nuclear power stations) is not among the paragraphs listed in Class 1, so a small modular reactor would be classified under Class 2 as an electricity generating station: major from 10 MW and, at any realistic size, above the 75 MW section 26(1) figure. The restructured Class 2 should say this in terms, under generation, so that nobody has to work it out from an omission. EN-7 has given developers in England a criteria-based route and the first SMR site at Wylfa; Northern Ireland should at least have a clear classification and a stated position on siting criteria, agreed with the Department for the Economy, before the question is asked.

Change 8: energy infrastructure on industrial sites. Generation, storage, heat recovery and capture built to serve an existing manufacturing site should be classified by the capacity added, under the same thresholds as stand-alone schemes, and the Department should say so, because the first such applications will otherwise be argued over. A 15 MW combined heat and power unit or a 100 MWh battery behind the meter at a cement works or a food processor is the kind of investment that keeps production here under the UK CBAM; it should be local development, decided by the council in 15 weeks, not major development decided in 41. The Department should also recognise the risk of carbon leakage as a consideration when such applications are determined; the section 26 criteria are fixed by the Act, so this belongs in guidance and in the determination, not in the referral.

Transmission and distribution. No objection to the new heading. The inclusion of carbon dioxide pipelines for geological storage is welcome and should be read with my comments on Class 8. One addition: interconnectors. The draft treats onshore works for an offshore generating station as major with Department consultation, but says nothing about the converter station, landfall and onshore cable route of an electricity interconnector, which are the same kind of development with a greater bearing on security of supply. Moyle is Northern Ireland's only link to Great Britain, and a second link to Scotland has been proposed. The Schedule should name interconnector works as major development, consulted on by the Department, so that the route to consent is clear before the application arrives.

Q.3 Class 3: Transport Infrastructure

Yes.

Splitting the sub-classes so each carries its own threshold is clearer. I particularly welcome the definition of "area of works" to include land used for apparatus, plant, spoil heaps and stores during construction. Temporary works are where most ground disturbance happens on a transport scheme, and where contaminated spoil, if there is any, is first met. Three points:

- The definition should also cover temporary haul roads and compounds, which are often the largest land take on a rail or port scheme.
- East–west connectivity (Annex A2 and ask 17): the class should name port, port-access and airport capacity serving Great Britain as strategic transport infrastructure with a clear route to consent, and the Schedule should say where subsea cable landings sit. Recent transport strategies have looked mainly along the island; this Schedule is one place to look across the sea.
- Now or at the next review, the Department may wish to consider where large charging and alternative-fuel depots for heavy goods vehicles sit. They are not transport infrastructure in the sense of this class and they are not generation; by floorspace they would be local. I do not ask for a new threshold, only that the gap is noted so that the first such application is not classified by argument.

Q.4 Class 4: Waste Infrastructure

Yes, subject to the changes below.

Hazardous waste. I support removing the 25,000 tonnes a year threshold so that hazardous waste facilities are major development with consultation of the Department. Northern Ireland's record on waste regulation, from Mobuoy onwards, argues for scrutiny of hazardous waste facilities at the planning stage, where the public can see them, rather than only at the permitting stage, where it cannot. The section 26(1) figure of 100,000 tonnes can stay.

Change 1: a de minimis for hazardous waste. "Any proposal" will catch a council recycling centre adding an asbestos skip, a hazardous waste transfer station on an existing licensed site, and a WEEE collection point. Each would need a 12-week community consultation and a Department referral. That is process without purpose. I suggest the description exclude proposals handling less than 1,000 tonnes a year, and proposals within the boundary of a site that already holds a waste management licence or pollution prevention and control permit for hazardous waste, unless the proposal would increase the permitted intake. The genuinely new facilities stay major; the small and incremental ones stay local.

Non-hazardous waste. Moving from "over 100 tonnes a day" to "over 25,000 tonnes a year" is sensible: annual tonnage is what operators permit, report and plan to, and 25,000 tonnes a year is the figure Scotland's hierarchy has used since 2009. The Department should note that the two are not the same. A facility running 250 days a year at 100 tonnes a day handles 25,000 tonnes; one running seven days a week handles 36,500. The new figure therefore lowers the threshold slightly for continuous operations. I think that is acceptable, but the consultation document does not say it and the RIA does not count it. Adding landfill expressly to the description is right.

Change 2: say where anaerobic digestion sits. Northern Ireland has one of the densest concentrations of farm and food-waste anaerobic digestion in these islands. An AD plant treating waste is a waste recovery operation and, if it generates electricity or produces biomethane, an energy installation too. The consultation does not mention anaerobic digestion. The Schedule should say that an installation whose feedstock is waste is classified under Class 4 by annual tonnage, whatever its energy output, and that one taking only purpose-grown crops or manures that are not waste is classified under Class 2. Without this, applicants and councils will reach different answers, and the Biomethane Strategy will meet its first obstacle in the hierarchy.

Waste water treatment. No change is proposed to the 50,000 and 150,000 population-equivalent thresholds. Given the wastewater constraints holding back housing across Northern Ireland, I would not raise them, but the Department should confirm that an upgrade of an existing works is classified by the capacity added, not the capacity of the works, consistent with regulation 2(1)(b) and the clarification I ask for under Class 2. Most of the coming investment will be upgrade, not new build.

Q.5 Class 5: Extractive Industry

Yes, subject to the changes below.

Hydrocarbons. Moving petroleum and natural gas exploration and extraction from Class 2 to Class 5, with every proposal both major and prescribed for section 26(1), is right. Extraction is extraction whatever the product, and the Department should see every hydrocarbon proposal.

Geothermal. Drilling depth is a reasonable metric for a new description, and it fits the two kinds of project now in Northern Ireland: the Department for the Economy's GeoEnergy NI demonstrator drilled boreholes of about 250 m and 500 m on the Stormont Estate, and the deep project at CAFRE Greenmount is reported to involve boreholes of up to 1,500 to 2,000 m. Under the draft, the first would be major development and the second regionally significant, which is the right order of scrutiny. Two points:

- **Closed-loop ground-source arrays.** A large building or campus may install dozens of closed-loop boreholes of 150 to 250 m for a ground-source heat pump. These exchange heat with the ground but do not extract water or alter the aquifer. The Department should say that closed-loop systems are outside this description. Otherwise the 200 m threshold will send school, hospital and office heat-pump schemes, which the Energy Strategy is trying to encourage, through a process designed for drilling rigs.
- **Aggregation.** Where an open-loop or deep scheme involves several boreholes, the deepest should govern, and the description should say so.

Peat. This is the one place in the Schedule where I ask for more scrutiny, not less. I support 2 hectares as the major threshold. I do not support 150 hectares as the section 26(1) figure. Peat extraction releases a carbon store that the Climate Change Act (Northern Ireland) 2022 and DAERA's Northern Ireland Peatland Strategy to 2040 (September 2025) are committed to protecting, and 150 hectares is a very large bog by Northern Ireland standards. I suggest the Department be consulted on any new commercial peat extraction, or at least that the figure be reduced to 25 hectares to match quarrying.

Quarries and underground mining. No objection to the thresholds.

Q.6 Class 8: Business, Industry, Storage and Distribution

Yes, subject to one change.

The 5,000 square metres or 1 hectare threshold is unchanged and I have no objection to it, though I note Scotland's equivalent is 10,000 square metres or 2 hectares and the Department might test the Northern Ireland figure against the application numbers I ask for below. Adding Class 8 to regulation 3(b) is consistent with the new carbon capture subclass.

Change: widen the carbon capture subclass and give it its own metric. The draft describes it as "underground storage or sequestration of carbon," and makes every such proposal both major and prescribed for section 26(1). I support that as far as it goes. But Northern Ireland has no identified onshore geological storage, and captured carbon dioxide from here would most likely travel by pipeline or ship to a store elsewhere. The development that will actually come forward is the **capture installation**: the plant bolted onto a cement kiln, a lime kiln, a glassworks or an energy-from-waste plant. The UK CBAM applies from 1 January 2027 and the EU CBAM already prices embedded carbon at the border; both make capture at process sites an investment case rather than a research topic. A capture plant is a sizeable chemical installation with its own solvent inventory, energy demand, compression and export facilities, and it can be built on an existing site without crossing 5,000 square metres.

I suggest the subclass read: "development for the capture of carbon dioxide from an industrial or energy installation with a capture capacity of 100,000 tonnes a year or more, or for the compression, transport by means other than pipeline, or underground storage or sequestration of carbon dioxide." The 100,000 tonnes figure matches the section 26(1) tonnage used for waste and is of the order a single kiln produces. Smaller capture units, pilot plant and research installations should stay local; the Schedule should say so, so that nobody argues the floorspace route for them.

Q.7 Class 9: All Other Development

Yes.

Removing "wholly" and "single" makes the description read as intended: anything not in Classes 1 to 8 is here, and the 5,000 square metres or 1 hectare threshold applies. One forward-looking point. Data centres are among the fastest-growing development types in Ireland and Great Britain and will reach Northern Ireland. They have modest floorspace, large grid connections and, increasingly, on-site generation and storage. By floorspace alone a data hall drawing tens of megawatts is classified no differently from a warehouse. I do not ask for a new threshold now; I ask the Department to record the gap and to count such applications, so that the 2028 review I propose below has evidence rather than argument. One thing it should say now: a data campus with its own generation or storage is classified on that capacity under Class 2.

Cross-cutting points

1. Who answers, and how the Department weighs it. The consultation document says the proposals reflect responses to the December 2023 consultation and discussions with key stakeholders, but it does not say how many responses there were, who they came from, or how they were weighed. That matters for the reason set out in Annex A1: Northern Ireland's consultations are answered by derisory numbers. A cohort of that size is not meaningfully directional for a public body: it tells the Department what a few dozen professional respondents think, and it is wide open to a single campaign, a copied form or an abusive submission skewing the deliberation, because when the whole response is thirty or sixty documents, twenty identical ones look like a movement. I ask the Department to publish, with its response report, the number of responses, a breakdown by type (councils, statutory bodies, developers and agents, trade and professional bodies, campaign groups, individuals), and a statement of how it weighted them; to weigh responses by the evidence they carry rather than by their count; to publish its approach to duplicate, campaign and abusive submissions in advance, so that respondents know the rules; and, where a cohort is too small to be directional on a given question, to say so and to fill the gap with the application data it already holds rather than with the loudest voice in the room.

2. Put a clock on Department consultation. The proposals add "all proposals" categories for major development (hazardous waste, hydrocarbons, carbon capture, onshore works for offshore generation) and prescribe hydrocarbons and carbon capture for Department consultation at any size. Each sends the applicant to the Department under section 26 before the council can touch the application. Only four regionally significant applications were received in 2025/26, so the Department's capacity for this is untested at any volume. Using the power in section 26(2) to prescribe the procedure to be followed in the consultations, the Development Management Regulations should prescribe a period, 28 days from a complete section 26 notice, within which the Department must serve its notice under section 26(4) or (6), and the Department should publish its performance against it each year. A deemed notice, under which silence would send the application to the council, would need section 26(7) of the Act amended; the Department should ask the Assembly for that at the next opportunity. Scotland's hierarchy works without a referral step at all; if Northern Ireland keeps one, it should be time-limited.

3. Repowering and upgrades, across the Schedule. The clarification I ask for under Class 2 (repowering and upgrades classified by the net addition, as regulation 2(1)(b) already provides for extensions) should be stated for every class, including waste water treatment works under Class 4. It costs nothing and would settle, before the first application, the question most likely to be argued.

4. The RIA needs evidence before the Rule is made. The RIA says costs and benefits are unknown until consultation yields more detail, and that the changes could mean more, or fewer, applications subject to pre-application community consultation. The Department holds the data to answer that. It should publish, by class and sub-class, the number of applications classified as major and as regionally significant in each year since 2015, and an estimate of how many would move under each proposed threshold. For a review that has run since the 2022 Review Report, this is not a large ask, and it is what the Consultation Principles and the Department's own better-regulation duties expect. Without it, nobody can

say whether this Rule reduces or increases the burden on applicants, and the RIA's claim that familiarisation costs are "modest" is a guess.

5. Rural impact. The consultation document records, under the Rural Needs Act (Northern Ireland) 2016 duty, that the Department finds no differential impact on rural areas. That is hard to accept. Electricity generation, energy storage, geothermal drilling, peat extraction and quarrying are, in Northern Ireland, almost entirely rural developments. The effect of the thresholds falls on rural communities and rural businesses first, and the Rural Needs Act (Northern Ireland) 2016 asks the Department to consider that. The screening should be revised to say so, and to explain why the Department nonetheless considers the thresholds proportionate.

6. Contaminated land. Many of the sites on which Class 2, 4 and 8 development will be built are former industrial land. Northern Ireland has never commenced Part III of the Waste and Contaminated Land (Northern Ireland) Order 1997, so there is no statutory identification of contaminated land and no register. Planning is the only point at which land condition is routinely examined. I do not ask for a new threshold to deal with this. I ask that, where the Department is consulted on a proposal under section 26, its response addresses land condition and says whether a preliminary risk assessment should accompany the application. This uses a step that already exists to do a job that no other regime in Northern Ireland currently does.

7. Definitions and aggregation. Beyond "electricity storage," the Schedule uses megawatts and megawatt-hours without saying whether they mean nameplate, rated, export or usable capacity, or whether extensions are counted with existing development. A short definitions paragraph would prevent most future disputes: nameplate capacity for generation; usable energy capacity for storage; aggregated across the site; extensions classified by the addition.

8. Alignment with the EIA Regulations. Class 1 is defined by reference to Schedule 1 of the Planning (Environmental Impact Assessment) Regulations (Northern Ireland) 2015, which were revoked and re-enacted as the 2017 Regulations; the amending Rule should update the reference. The EIA Schedule 2 thresholds for energy, storage and waste do not align with the new figures. The Department should check, before the Rule is made, that no proposal can be major development yet fall below EIA screening, or vice versa, unless that is deliberate.

9. Commencement and transition. The draft Rule has no commencement date. Applications in pre-application discussion or community consultation on the day the Rule commences should keep their existing classification, and the Rule should say so.

10. Embodied carbon in the application. Following position 5 in Annex A: the Department should add to the validation requirements for major development in Classes 1 and 2 (which sit in the General Development Procedure Order, not in this Rule) a short statement of the embodied carbon of the principal equipment (turbines, modules, inverters, batteries, electrolysers, transformers), its country of manufacture, and the due diligence done on forced labour, child labour and local pollution in its supply chain, verified where a low figure or a clean chain is claimed, and should say in guidance that embodied carbon is a consideration where it bears on a scheme's claimed climate benefit. This is a disclosure, not a threshold, and it is the only point in the consent process at which the carbon and human cost of building the grid is ever written down.

11. Review in 2028, with numbers. The RIA sets the next statutory review for 2030. Given the pace of change in energy and carbon technologies, and the number of judgement calls in this Rule, the Department should publish an interim note in 2028 on how the new thresholds have operated, using the application counts I ask for in point 4, and should say now what it would take for a threshold to be revised.

Closing

The common thread is simple. The planning hierarchy should make it quick to build what cuts bills and keeps work here, slow only what carries a real hazard, and never be the reason Northern Ireland pays more, makes less, or depends on others for the means to keep its lights on. Decarbonisation that impoverishes the people asked to pay for it will not survive an election, and should not.

Thank you for the opportunity to respond and for extending the closing date. I would be glad to discuss any of these points with the Regional Planning Governance and Legislation team. I will publish this response on my website once the consultation has closed, and I will record the Department's published outcome alongside it.

Robert J. Park
Larne, Co. Antrim
robert@robertjpark.co.uk · robertjpark.co.uk

Annex A: the context for this response

A1. First, a question about the numbers: 224, 100, 59, 67

Before the thresholds, the numbers. DAERA's draft Climate Action Plan, the document that is meant to steer every farm, factory, council and household in Northern Ireland to 2027, drew 224 responses. The Just Transition Commission drew 100. The third climate adaptation programme, 59. The Peatland Strategy, 67. This consultation, on the rules that decide which of Northern Ireland's 9,642 planning applications a year get a year of extra process, needed a four-week extension to gather what it has. For a population of 1.9 million these are not returns from which a public body can safely read direction.

I put this first because the consultation document says its proposals reflect the responses to the last round, and I would like to know how many that was and whose they were. Northern Ireland sits well towards the bottom of the table in these islands for public engagement in consultation, and it has for years. What strikes me is not the number but the calm with which it is received. Each summary of responses is published, each Assembly committee notes it, each Minister thanks respondents, and nothing changes. So I ask the Department an open question, and I ask it of the elected members who will scrutinise the Rule that comes out of this: is this tolerated by design or by default? I do not assume the answer. But a department that proposes to put "balance" into community consultation on planning applications should be able to say what balance there is in its own.

The practical consequences are set out under cross-cutting point 1 in the main response: a cohort this small is not meaningfully directional for a public body, and it is wide open to a campaign, a copied form or an abusive submission skewing the result. The remedy is cheap, and I set it out there too.

A2. The rules we do not get to shape

The second piece of context is that most of the rules bearing on the development in this Schedule are not made in Northern Ireland, and are not consulted on here at all. Under the Windsor Framework around 300 EU acts apply in Northern Ireland, covering goods, customs, chemicals, product safety and the electricity market. Northern Ireland's generators sit in the all-island Single Electricity Market and inside the EU Emissions Trading System; its waste, chemicals and product rules follow EU law; its goods sold on through Great Britain into the EU meet the EU CBAM and all of it meets the UK CBAM from January; and its goods trade with Great Britain runs on rules settled between London and Brussels. On none of that does Northern Ireland get a say before the rule is made. The Windsor Framework Democratic Scrutiny Committee has five working days after an EU act is published to decide whether to inquire, the legal test for a Stormont Brake is a significant impact specific to everyday life in Northern Ireland that is liable to persist, the Brake has been pulled once and the Secretary of State declined to act. The House of Lords found the democratic deficit unaddressed and noted there is not even a register of the EU laws that apply here. Scrutiny, where it exists, comes after agreement, not before.

The cost of that arrangement is on every bill. Northern Ireland's electricity has been bought and sold since 2007 in the all-island Single Electricity Market, an outcome of the North–South cooperation that followed the Good Friday Agreement, and the Windsor Framework kept Northern Ireland inside the EU's electricity rules after Brexit. The result is a small, gas-dependent island market with thin interconnection to Great Britain, which has set some of the highest wholesale electricity prices in Europe through 2022 to 2025 and leaves Northern Ireland exposed to every swing in the gas price: its regulated household tariffs sit only just below the Great Britain price cap, its oil-heated homes carry unregulated prices, and its larger industrial users paid 17.8p per kWh in late 2025 against an EU median of 10.3p, on the Utility Regulator's

own figures. The Republic's household electricity is now the most expensive in the European Union on Eurostat's figures. That is a harm to both economies, not only to ours: Northern Ireland threw away nearly 30% of its available wind in 2024 and 22% in 2025, most of it network constraint, paying twice, once in constraint compensation to the generator and once for the gas plant that ran instead; and the island depends for its security on one 500 MW cable from Northern Ireland to Scotland, two from the Republic to Wales and, from 2028, one 700 MW cable from Cork to Brittany. Northern Ireland needs energy independence in the only sense that matters for a small place: enough firm, local, low-carbon generation and storage that no single cable, supplier or government sets its prices, together with strong links in both directions to Great Britain and to France, whose nuclear fleet is the largest low-carbon generator within reach of these islands. The planning hierarchy cannot fix the market; that is for the Department for the Economy, the Utility Regulator and the Executive. It can make sure that the interconnectors, the storage, the firm generation and, if it comes, the small modular reactor that would loosen the market's grip are the easiest things in the Schedule to consent, not the hardest.

The thinness of the east–west connection is not only electrical, and the rest of it is squarely the Department's business. Moyle is the only power link to Great Britain. Northern Ireland is also the only part of the island inside NATO; that makes its cable and interconnector landings strategic in the plain sense. The freight on which Northern Ireland's largest market by a distance depends moves through Belfast, Larne and Warrenpoint on ferries, with no rail freight on the Northern Ireland network at all. The all-island rail review of 2024 recommended rail links to the island's busiest ports and to Belfast International Airport, but said nothing about the ferry routes to Great Britain that most of Northern Ireland's trade uses. The subsea telecoms cables on which both economies run land where the planning system lets them. Multinational business treats these islands as one economic unit; the strategies written here increasingly do not. Part of the explanation is structural: EU Connecting Europe funding and Project of Common Interest status are available for links to France and not to Great Britain, and strategies have followed the money. The Department should say whether it has weighed that, and the Assembly should ask. For this Schedule, it means Class 3 should name east–west port, port-access and airport capacity as strategic transport infrastructure with a clear route to consent, and the Schedule should place subsea cable landings somewhere, alongside the interconnector works I ask for under Class 2.

That makes the planning hierarchy unusual. It is one of the few sets of rules that decide what gets built in Northern Ireland and are wholly within Stormont's gift, consulted on before they are made, and open to anyone who lives here. A department holding that lever should use it well: with full evidence, a published account of who responded, and thresholds that do not add a Northern Ireland layer of process on top of the EU and GB layers that applicants already carry and cannot influence. Two things follow for this review. First, the Department's response report should say, for each class, which EU and GB regimes already bear on it (the ETS for generators under Annex 4, REACH, CLP and product rules under Annex 2, waste shipments, and the retained EIA, waste and COMAH regimes that Stormont has chosen to keep aligned) and how the threshold has been set against them, so that Northern Ireland does not end up with the strictest classification and the least say. Second, where Northern Ireland must apply an EU definition anyway, as it does for hazardous waste and for major-accident establishments, the Schedule should use that definition rather than invent a figure of its own. Both are asked for in the main response (asks 4 and 16).

A3. Five positions behind this response

The Schedule is a procedural instrument, but it should serve an energy policy, and an energy policy has to pass one test before any other: it must not impoverish the people it is meant to serve. Around a quarter of Northern Ireland's households are in fuel poverty, and it has some of the lowest wages in the United Kingdom. A transition that raises bills, exports manufacturing jobs, imports its equipment from coal-fired factories and leaves the grid dependent on a single foreign supplier is not a transition; it is a transfer of wealth out of this place, and out of the UK, Ireland, the EU and the West generally, to the places that did least to cut their emissions. Every threshold and every ask below has been judged against that. These are the five positions from which I have judged each threshold.

1. Keep every option open, including small modular reactors. Northern Ireland has no nuclear generation and nuclear energy is not a devolved matter, but planning is. The UK Government laid its new National Policy Statement for nuclear energy, EN-7, before Parliament on 12 November 2025; it moves from a fixed list of sites to criteria-based siting and covers small and advanced modular reactors for the first time, with a stated wish to co-locate them with energy-intensive

industry. Nuclear power stations are, perhaps deliberately, left out of Class 1 (paragraph 2 of Schedule 1 to the EIA Regulations is not among those listed), so a reactor would fall to be classified under Class 2 as an electricity generating station: major from 10 MW and above the 75 MW figure for Department consultation. The hierarchy does not need a new threshold. What it needs is for the Department to say so, and to work with the Department for the Economy on a Northern Ireland position on SMR siting criteria, so that if a proposal comes it is classified by rule rather than by argument, and so that the planning hierarchy is never the reason Northern Ireland is left out of a UK programme.

2. Treat storage as the answer to wasted renewable output. The EirGrid and SONI constraint and curtailment reports show Northern Ireland dispatching down nearly 30% of its available wind in 2024 and 22% in 2025, most of it network constraint, with 12.9% of available solar dispatched down in 2025. That is electricity paid for twice, in constraint compensation and in the gas plant that runs instead, and thrown away. Storage, demand that can move, and grid reinforcement are the fixes. A Schedule that makes a battery beside a constrained wind farm a year-long process is working against the grid it is meant to serve. That is why I ask for the extensions rule, the co-location rule and a proportionate storage threshold.

3. Put demand reduction first. The cheapest megawatt is the one not needed. The Department for Communities' Warm Healthy Homes Strategy 2026–2036 commits about £150 million over its first five years, and the Energy Strategy Action Plan promised a retrofit programme, a one-stop shop and a skills pilot. None of it has yet reached the scale that Northern Ireland's level of fuel poverty and some of the leakiest housing stock in the UK demand. A voucher-based scheme for insulation and efficiency measures, open to every household and small business, with the training and PAS 2035 accreditation to deliver it, would cut bills and peak demand faster than any generation class in this Schedule. Planning's part is to stay out of the way: retrofit measures, heat networks under 10 MW and building-scale storage should never trigger the major process, and the Schedule should say so.

4. Balance energy policy against the risk of offshoring production. Northern Ireland's energy-intensive manufacturers, in cement, lime, glass, food processing, metals and chemicals, now face the UK CBAM from 1 January 2027 and the EU CBAM through their customers. Carbon pricing without cheap, reliable energy and a quick route to on-site generation, storage, heat recovery and capture does not reduce emissions; it moves them, with the jobs, to places that do not count them. The hierarchy should make it no harder to build energy infrastructure inside an existing industrial site than to build it in a field, and the Department should recognise carbon leakage in guidance and in the determination of such proposals. Several of my asks under Classes 2 and 8 follow from this.

5. Bring the equipment of energy harvesting inside the carbon border, judge it on the whole of ESG, and do not offshore its manufacture until that is done. Every wind turbine, solar module, battery and electrolyser this Schedule consents is itself a manufactured product, and the record of where those products come from is not only a carbon record. It is an environmental, social and governance record, and on all three counts it points at the same places.

- **China.** The International Energy Agency puts China's share of global manufacturing at about 80% for solar modules and batteries, over 60% for wind turbines and over 60% for electrolysers, and found that coal generates more than 60% of the electricity used in solar manufacturing worldwide, against 36% in power generation as a whole. Sheffield Hallam University's 2021 report *In Broad Daylight* found that the Xinjiang Uyghur region produced about 45% of the world's solar-grade polysilicon, that every polysilicon plant there ran on coal, and that all four of its producers were implicated in state-imposed forced labour. The United States has banned imports from the region unless proven clean since 2022; the UN human rights office found "serious human rights violations" there the same year. Wages in the sector are a fraction of those in Europe.
- **Africa.** The Democratic Republic of the Congo supplies most of the world's cobalt, a battery input. Amnesty International has documented children as young as seven working in artisanal cobalt mines for under two dollars a day, without protective equipment, breathing dust that causes hard-metal lung disease.
- **Brazil.** Pig iron, the feedstock for the steel in towers, frames, trackers and mountings, is made in Brazil's Amazon states with charcoal from camps that the Brazilian government's own inspectors describe as endemic for slave labour, and that drive illegal deforestation. Brazil keeps a public "dirty list" of such employers; the problem has outlasted twenty years of industry pacts.

Neither the UK CBAM from 1 January 2027 nor the EU CBAM today covers finished energy equipment: both price the steel and aluminium going in, not the turbine or module coming out, and neither says anything about the labour that made it. The EU is now closing the carbon gap. The Commission proposed on 17 December 2025 to extend its CBAM to about 180 steel- and aluminium-intensive downstream goods from 1 January 2028; the Council has added some 200 more, including turbines, and the Parliament's list runs to over 450 and names solar panels and heat pumps outright. The three institutions meet again in trilogue on 30 November and aim to agree before the end of 2026. Northern Ireland, which lives under both regimes, should want the UK to match it, and to add the social half of the test that the EU's own Forced Labour Regulation (applying from December 2027) and corporate due-diligence rules supply.

My position is that the equipment of energy harvesting should be within a carbon border that rewards clean, forced-labour-free production wherever it occurs, and so brings manufacturing back to the UK and the EU on merit, and that until such an agreement is in place every major scheme should declare what its components cost in carbon, labour and dependence: carbon emitted in coal-powered factories, minerals dug by children, steel smelted on charcoal cut by forced labour, and supply that can be withdrawn by a single government. Counted, not hidden. That is a carbon argument, a human-rights argument, a jobs argument and an energy-security argument, and they point the same way. I accept what it costs: with four-fifths of the world's modules and batteries made in China, equipment that meets a carbon and labour standard will carry a premium for some years, and some of it will reach bills. I think that premium is worth paying, because the alternative is a grid whose price is set in Beijing and whose cost is paid in Xinjiang and the Congo; but only if it is carried through support-scheme conditions and public procurement, where the Executive can see it and shield fuel-poor households from it, rather than through the regulated tariff, and only if it is said plainly that the manufacturing and wages it brings back will mostly land in Great Britain and the EU, not here. The disclosure I ask for is how it gets counted. A planning authority cannot lawfully refuse consent on the basis of where a product was made, and what happens in a foreign factory is not a land-use matter. What is a land-use matter is the carbon a scheme claims to save, and embodied carbon bears directly on that. I therefore ask the Department to require, for major energy development in Classes 1 and 2, a short embodied-carbon and supply-chain statement with the application, covering carbon, forced and child labour and local pollution at the main stages of manufacture, verified where the applicant claims a low figure or a clean chain; to say in guidance that embodied carbon is a consideration where it bears on a scheme's claimed climate benefit; to treat the labour and pollution parts as a disclosure that informs support-scheme conditions and procurement rather than the planning decision; and, through the Executive, to press HM Treasury to extend the UK CBAM to finished energy equipment on the EU's 2028 timetable and to make disclosure of embedded emissions and completed supply-chain due diligence, applied equally to domestic and imported equipment, conditions of any Northern Ireland renewable support scheme. None of this adds a threshold. It adds one page to an application and one line to a support scheme, and it would do more for Northern Ireland's manufacturers, and for the people at the far end of these supply chains, than any number of generation classes.

Annex B: sources

- Review of the Classes and Thresholds in the Schedule to the Planning (Development Management) Regulations (NI) 2015: consultation document, Section 75 screening and Regulatory Impact Assessment (DfI, 14 August 2026; closing date extended to 6 November 2026)
- The Planning (Development Management) Regulations (Northern Ireland) 2015, Schedule (legislation.gov.uk)
- Northern Ireland Planning Statistics: Annual Statistical Bulletin 2025/26 (DfI, August 2026): 9,642 applications; 165 major; major average 41.4 weeks against a 30-week target
- The Town and Country Planning (Hierarchy of Developments) (Scotland) Regulations 2009, Schedule: generation 20 MW; waste 25,000 tonnes a year; business and industry 10,000 sq m or 2 ha
- Scottish Planning Series Circular 5/2009: Hierarchy of Developments (extensions classified on their own merits)
- Proposals regarding the planning system for electricity storage: government response (BEIS, 14 July 2020): storage removed from the NSIP regime in England and Wales
- National Policy Statement for renewable energy infrastructure (EN-3), 2025: solar and onshore wind NSIP threshold 100 MW in England from 31 December 2025
- Annual Renewable Energy Constraint and Curtailment Report 2025 (EirGrid and SONI, May 2026) and the 2024 report (Northern Ireland dispatch-down of wind and solar)
- National Policy Statement EN-7 on nuclear energy infrastructure: written ministerial statement HCWS1049 (DESNZ, 12 November 2025)

- Warm Healthy Homes: a Northern Ireland fuel poverty strategy 2026–2036 and the Warm Healthy Homes Fund (Department for Communities, February and May 2026)
- Energy Strategy for Northern Ireland: 2022 Action Plan (domestic retrofit scheme, one-stop shop, skills pilot)
- In Broad Daylight: Uyghur Forced Labour and Global Solar Supply Chains (Murphy and Elimä, Sheffield Hallam University, May 2021) and the 2023 update Over-Exposed
- Clean Energy Council (Australia) report on modern slavery in solar, wind and battery supply chains, citing Amnesty International on DRC cobalt (November 2022)
- Driving Destruction in the Amazon: pig iron, charcoal, slave labour and deforestation in Brazil (Greenpeace, 2012) and Brazil's "dirty list" of employers
- Special Report on Solar PV Global Supply Chains (IEA, July 2022): China's share above 80% at every stage; coal over 60% of electricity used in PV manufacturing
- China's share of global manufacturing in selected energy technologies, 2025 (REN21, from IEA data): solar PV 80%, wind 64–75%, batteries 80%, electrolysers 62%
- Proposal to extend the CBAM to downstream products, COM(2025) 989 (European Commission, 17 December 2025) and the Council and Parliament positions of June and September 2026 (S&P Global, 2026)
- Control of Major Accident Hazards Regulations 2015, Schedule 1 (hydrogen 5 and 50 tonnes; the Northern Ireland Regulations of 2015 carry the same quantities)
- Review of the Implementation of the Planning Act (NI) 2011: Report (DfI, January 2022)
- Geothermal Demonstrator Project (Department for the Economy)
- Underground energy drilling proposals go to planners (Antrim Guardian, 14 July 2025; Greenmount borehole depths as reported)
- Northern Ireland Peatland Strategy to 2040 (DAERA, 17 September 2025)
- Consultation on a Biomethane Strategy and Policy Framework for Northern Ireland (DfE and DAERA, 20 October to 15 December 2026)
- Electricity prices in Northern Ireland: a factual analysis (Utility Regulator); Celtic Interconnector, 700 MW Ireland–France, commissioning 2028 (EirGrid)
- Windsor Framework Democratic Scrutiny Committee (Northern Ireland Assembly); Lord Murphy's Independent Review of the Windsor Framework (December 2025 Government response); House of Lords Northern Ireland Scrutiny Committee report on the democratic deficit (October 2025)
- Summaries of responses: Climate Action Plan 2023–2027 (224 responses, DAERA, April 2026); Just Transition Commission (100, May 2025); draft NICCAP3 (59); Peatland Strategy consultation (67, 2021)
- Contaminated land (DAERA)